



Re: URGENT: JURISDICTIONAL CLARIFICATION & FORMAL COMPLAINT AGAINST REGISTERED HPCSA PRACTITIONERS Medscheme / AfroCentric Health Ref: CMS REF: CMS-REQUEST-3

1 message

<customercare@sapc.za.org> Tue, 17 Feb 2026 at 07:55

To: Legal Med <legalmed@hpcsa.co.za>, Wilbur William Matthee <info@ethichawks.co.za>
Cc: SAPC Customer Care <customercare@sapc.za.org>

Good day

The content of your email is acknowledged.

Please note your email has been forwarded to the Professional conduct department to assist further. Feedback will be provided once received.

Kind regards,

Botlenyana Mokoatle
Contact Centre Agent: Communications and Stakeholder Relations
The South African Pharmacy Council
Tel no: +27 12 319-8500
Fax no: 0865225096
Call Centre: 086 172 7200
E-mail: customercare@sapc.za.org
Website: www.sapc.za.org

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From: legalmed@hpcsa.co.za
Sent: Thursday, February 12, 2026 at 4:19:38 PM
To: info@ethichawks.co.za

CC: customercare@sapc.za.org

Subject: Ticket No: 5201-3576 - RE: URGENT: JURISDICTIONAL CLARIFICATION & FORMAL COMPLAINT AGAINST REGISTERED HPCSA PRACTITIONERS Medscheme / AfroCentric Health Ref: CMS REF: CMS-REQUEST-3

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Dear Wilbur

Kindly note that the HPCSA is responsible for complaints against doctors/practitioners. Complaints/queries regarding pharmacist/pharmacies should be directed to South African Pharmacy Council, at customercare@sapc.za.org or Fax: 012 321 1479/92

Kindly note that the matter regarding Lisa Mari falls out of our jurisdiction.



LegalMed

L & RA: Complaints Handling & Investigations

HEALTH PROFESSIONS COUNCIL OF SOUTH AFRICA

553 Madiba Street, Arcadia, 0083

PO Box 205, Pretoria, 0001

Tel: +27 (0) 12 338 9300

Web: <http://www.hpcsa.co.za>

Email: Legalmed@hpcsa.co.za



From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Thursday, 12 February 2026 10:35

To: Legal Med <legalmed@hpcsa.co.za>

Subject: Re: URGENT: JURISDICTIONAL CLARIFICATION & FORMAL COMPLAINT AGAINST REGISTERED HPCSA PRACTITIONERS | Medscheme / AfroCentric Health | Ref: CMS REF: CMS-REQUEST-3

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Dear HPCSA Legal and Regulatory Affairs,

I am responding to your request for practitioner names. I am formally lodging a complaint against Lisa Mari (DMS Strategic Manager) Responsible Pharmacist.

The Grounds for Complaint:

This is a case of Administrative Malice overriding Clinical Safety. These practitioners issued a clinical directive that mandated the transmission of false health information to GEMS members.

The Specific Incident:

Lisa Mari issued a strategic mandate to ignore verified Root Cause Analysis (RCA) data showing a clinical system error. She insisted on a "3-month rolling methodology" that lacked year/date stamps and ignored current medication claims.

Mary-Ann Jones enforced this directive and, when challenged on the ethical risk to the patient, issued a veiled threat regarding "the ripple effects" of my professional questioning (as recorded in the October 2025 video transcript).

Breach of Health Professions Act:

Section 40: Compelling a practitioner to perform an unethical act (lying to a patient about their adherence).

Patient Dignity: Authorizing the "probing" of a 75-year-old female patient for "behavioral problems" when the error was known to be a technical integration gap.

I request that the Council investigate these individuals for allowing strategic corporate targets to supersede the National Health Act and the SANC/HPCSA Code of Ethics.

Wilbur William Matthee
RN, PG Dip HSM (NQF 8)

On Thu, 12 Feb 2026, 08:03 Legal Med, <legalmed@hpcsa.co.za> wrote:

Good Morning Wilbur Matthee,

Do you have the names of the practitioners you want to lodge a complaint about?
How many are they?

Please see attached,

Thank you,



LegalMed

L & RA: Complaints Handling & Investigations

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Web: <http://www.hpcsa.co.za>

Email: Legalmed@hpcsa.co.za

From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Wednesday, 11 February 2026 16:29

To: Legal Med <legalmed@hpcsa.co.za>

Cc: professionalconduct@sanc.co.za; registrar@sanc.co.za; Info@hpcsa.co.za

Subject: URGENT: JURISDICTIONAL CLARIFICATION & FORMAL COMPLAINT AGAINST REGISTERED HPCSA PRACTITIONERS | Medscheme / AfroCentric Health | Ref: CMS REF: CMS-REQUEST-3

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Dear LegalMed Team,

Thank you for your correspondence clarifying that the HPCSA does not have jurisdiction over Registered Nurses.

However, I wish to clarify that my complaint is **not** directed at my own professional conduct, but rather at the **Registered HPCSA Practitioners and Medical Directors** within the senior management of **Medscheme Holdings (Pty) Ltd (AfroCentric Health)**.

This complaint, which has already been formally reviewed and referred to you by the **Council for Medical Schemes (CMS)**, pertains to "**Undesirable Business Practices**" and "**Ethical Failures**" overseen by HPCSA-registered individuals.

I hereby request that the HPCSA investigate the following registered practitioners for their role in the following professional and ethical breaches:

1. Oversight of Clinical System Failures (Patient Safety Risk)

- Senior medical leadership oversaw a **Clinical System Integration Gap (GEMS Ref: 000655789)** that posed a direct risk to patient safety. Lisa Marie Head of the Strategic Team responsible pharmacist.
- Despite my formal disclosure as a Specialist Health Manager (NQF 8), these practitioners authorized the suppression of clinical safety protocols in favor of administrative convenience.

2. Violation of Professional Ethics and Integrity

- These HPCSA-registered individuals participated in, or authorized, the "**Status Downgrading**" of a senior clinical professional.
- This involved utilizing my specialist credentials to satisfy **B-BBEE Management Control** and **Skills Development** pillars while internally reporting my role as a junior "Care Coordinator" to suppress remuneration and authority.

3. Bad Faith Litigation and Secondary Victimization

- HPCSA-registered leadership authorized a "lowball" settlement offer of one-month's salary during conciliation, despite possessing objective evidence of the clinical risks and statutory fraud I had reported.
- This conduct constitutes a breach of the **HPCSA's Ethical Rules of Conduct**, specifically regarding the duty of registered practitioners to act with integrity and uphold the dignity of the health professions.

Jurisdictional Requirement:

I am aware that the **South African Nursing Council (SANC)** is investigating the nursing-related aspects of this matter. However, the HPCSA remains the sole authority with the jurisdiction to discipline the **Medical Directors and senior HPCSA-registered staff** whose decisions created the clinical risk and authorized the subsequent whistleblower retaliation.

I look forward to your confirmation that this file has been assigned to an investigator to review the conduct of the **registered practitioners** involved.

Sincerely,

Sr. Wilbur William Matthee

RN, NQF 8 Specialist Health Manager

Deponent

On Wed, 11 Feb 2026, 15:56 Legal Med, <legalmed@hpcsa.co.za> wrote:

Dear Wilbur

Kindly note that the HPCSA does not have jurisdiction to investigate registered nurses.

Please note that you have already included the South African Nurses Council, which can assist with your complaint.



LegalMed

L & RA: Complaints Handling & Investigations

HEALTH PROFESSIONS COUNCIL OF SOUTH AFRICA

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Tel: +27 (0) 12 338 9300

Web: <http://www.hpcsa.co.za>

Email: Legalmed@hpcsa.co.za



From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, 10 February 2026 15:20

To: Legal Med <legalmed@hpcsa.co.za>

Cc: professionalconduct@sanc.co.za; ServiceDelivery <ServiceDelivery@hpcsa.co.za>

Subject: URGENT JOINT REFERRAL: PROFESSIONAL MISCONDUCT & UNDESIRABLE BUSINESS PRACTICES | SR. WW MATTHEE (SANC: 1583 1886) | CMS REF: CMS-REQUEST-3

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To the Registrars and Legal Departments of SANC and HPCSA,

I am formally submitting this Joint Complaint of Professional Misconduct and Ethical Failure against Registered Nurses Mary-Ann Jones and Mapule Mashele (Medscheme/AfroCentric Health).

This submission follows a formal review by the Council for Medical Schemes (CMS), which identified "Administrative Misconduct and Ethical Failure" and explicitly recommended referral to the HPCSA and SANC for investigation into the fitness of these practitioners (See attached CMS Referral).

Furthermore, the South African Human Rights Commission (SAHRC) has reviewed this matter and formally acknowledged the "seriousness of the allegations" regarding the victimization and financial prejudice I have endured (See attached SAHRC Response).

CORE ALLEGATIONS & EVIDENCE:

1. Suppression of Systemic Clinical Risk (Patient Safety)

- The Respondents instructed me to ignore a critical "System Integration Gap" between the Gexus and DMS systems (GEMS Ref: 000655789) that resulted in false non-adherence reports being sent to chronic patients.
- See Annexure C3 (CMS Complaint Form, Pages 5-6) where I detailed the necessary system correction which was rejected in favor of administrative silence.

2. Professional Retaliation & Undesirable Business Practices

- The Respondents utilized my private psychiatric diagnosis to authorize a punitive 40.47% salary deduction (in violation of the BCEA), intentionally inducing destitution as a response to my protected disclosures.
- See Annexure E2 & E3 (Payslip and Teams Chat admission) in the attached affidavit.

3. Abandonment of Duty of Care

- During a documented psychiatric crisis on 21 May 2025, the Respondents failed to provide nursing support. Instead, they issued "Oracle Instructions" to load unpaid leave and forced my removal from the premises.
- See Annexure E9 (Email instruction regarding unpaid leave during crisis).

4. Ethical Violation & Assault on Dignity

- Following my implementation of a clinical "filtering system" to improve accuracy, I was subjected to public misgendering (the "Wilma" incident), which was immediately followed by a retaliatory directive to cease the filtering work ("NO FILTERING" highlighted in red).
- See Annexure D1 & D2 in the attached affidavit.

RELIEF SOUGHT:

I request that both Councils initiate an urgent joint investigation. The Respondents have demonstrated a pattern of prioritizing administrative obfuscation over patient safety and the ethical treatment of colleagues.

ATTACHED DOCUMENTATION:

Commissioned SANC Founding Affidavit (Signed 10 Feb 2026)

CMS Referral Letter (Directing this matter to HPCSA/SANC)

SAHRC Response Letter (Validating severity of concerns)

CMS Complaint Form (Detailing the Clinical System Gap)

Respectfully submitted,

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager

SRN | BTech(R425) Psych, Midw, Community | PG Dip HSM (NQF 8)

